

IN THE LABOUR COURT OF SOUTH AFRICA, CAPE TOWN

CASE NUMBER: TO BE ALLOCATED

RULE 16A CERTIFICATE

(CLASS ACTION CERTIFICATION)

In the matter between:

WILBUR WILLIAM MATTHEE

(Acting in his personal capacity and as representative plaintiff)

Applicant

and

MEDSCHEME HOLDINGS (PTY) LTD

Respondent

I, the undersigned,

WILBUR WILLIAM MATTHEE

Identity Number: 890903 5151 087

Residential Address: NA, by electronic mail.

do hereby make oath and state that:

1. I am the Applicant in the above matter. I am an adult South African citizen. The facts deposed to herein are within my personal knowledge and belief, save where the context indicates otherwise, and are to the best of my knowledge and belief both true and correct.

PART A: PERSONAL STANDING AND CAPACITY

2. I was employed by the Respondent from [INSERT DATE] to 12 December 2025 in the position of Case Manager (Health Services Management Nurse Specialist).

3. During my employment, I was subjected to systematic unlawful payroll practices, retaliatory conduct following protected disclosures, and discriminatory treatment as fully set out in my Founding Affidavit.

4. On 23 July 2025, the Respondent deducted R14,811.77 from my salary, representing 40.47% of my gross remuneration, without any prior written consent and in direct breach of sections 34(1) and 34(2) of the Basic Conditions of Employment Act 75 of 1997 ('BCEA').

5. This deduction was one of multiple unlawful payroll actions taken against me during the period May 2025 to December 2025, including bunched deductions loaded deliberately on or immediately before pay day (the 23rd of each month), creating a systematic pattern of payroll weaponisation designed to maximise financial and psychological pressure.

6. I resigned on 12 December 2025 as a result of constructive dismissal, the dominant reason for which was retaliation for making protected disclosures under the Protected Disclosures Act 26 of 2000 ('PDA').

PART B: KNOWLEDGE OF OTHER AFFECTED EMPLOYEES

7. I am aware of at least two other current employees of the Respondent who were subjected to unlawful salary deductions exceeding 25% of gross remuneration without written consent during the same period.

8. Based on the systemic nature of the Respondent's payroll practices, I have reason to believe that the number of affected employees during the Class Period (1 January 2023 to 31 December 2025) is significantly higher than two.

9. The Oracle payroll system used by the Respondent to load manual deduction entries is centrally controlled, and the unlawful deduction practices documented in my case were not isolated administrative errors but deliberate, repeated conduct over multiple months.

10. The Respondent's failure to declare and remit UIF contributions — as documented in my case via uFiling screenshot evidence — is a systemic payroll compliance failure that by its nature affects all employees from whom UIF contributions are deducted.

11. I have not directly approached the two employees I am aware of to ask them to join this action because: (a) they are currently employed by the Respondent and face retaliation risk; (b) Rule 16A does not require their prior consent for class certification; and (c) the proper mechanism is for the Court to certify the class and for notice to be issued, at which point they and other affected employees can make an informed decision whether to opt in.

PART C: CLASS DEFINITION AND NUMEROSITY

12. I propose that the class be defined as follows:

"All current and former employees of Medscheme Holdings (Pty) Ltd who, during the period 1 January 2023 to 31 December 2025, were subjected to one or more of the following: (a) salary deductions exceeding 25% without written consent (BCEA s34); (b) salary deductions without any consent (BCEA s34); (c) UIF contributions deducted but not remitted (UICA s6); (d) retaliatory payroll or disciplinary action following protected disclosures (PDA s3); (e) discriminatory treatment (EEA s6); or (f) systematic loading of punitive entries on or before pay day as a coercive mechanism."

13. I respectfully submit that joinder of all affected class members is impracticable for the following reasons:

- (a) The exact number of affected employees is unknown to me and is within the exclusive knowledge of the Respondent, who controls the payroll records;
- (b) Many affected employees remain employed by the Respondent and face significant retaliation risk if they file individual claims;
- (c) The amounts involved in individual deductions may appear small to some employees, creating a practical barrier to individual litigation despite the aggregate harm being substantial;
- (d) The systemic nature of the UIF non-remittance issue affects all employees but would be impracticable to litigate through hundreds of individual claims.

PART D: COMMONALITY OF QUESTIONS

14. There are questions of law and fact common to the entire class, including:

- (a) Whether the Respondent's payroll practices systematically breached BCEA sections 34(1) and 34(2) by making deductions without consent or in excess of the 25% statutory cap;
- (b) Whether the Respondent systematically failed to declare and remit UIF contributions in breach of UICA section 6;
- (c) Whether the Respondent used payroll practices as a mechanism of retaliation against employees making protected disclosures, in breach of PDA section 3;
- (d) Whether the systematic timing of punitive payroll entries on or before pay day constitutes deliberate institutional conduct designed to maximise coercive pressure on employees;
- (e) What declaratory, restitutionary, and compensatory relief is appropriate for the class.

15. These common questions predominate over any individual questions, as the core issue is whether the Respondent's institutional payroll practices were lawful.

PART E: TYPICALITY

16. My claims are typical of the claims of the class because:

- (a) I was subjected to the same unlawful deduction practices — deductions exceeding 25% without consent — that affected other class members;

- (b) UIF contributions were deducted from my salary but not remitted, which is a systemic practice affecting all employees;
- (c) I was subjected to retaliatory payroll conduct following protected disclosures, which is the same mechanism used against other whistleblowers;
- (d) The Oracle payroll system used to load my unlawful deductions is the same system used for all employees.

17. There are no conflicts between my interests and the interests of the class. All class members seek the same relief: restitution of unlawfully deducted amounts, remittance of outstanding UIF contributions, declaratory orders, and costs.

PART F: ADEQUACY OF REPRESENTATION

18. I am an adequate and appropriate representative plaintiff for the class for the following reasons:

- (a) I have a strong personal interest in vindicating the rights of all affected employees, having suffered the most extreme consequences of the Respondent's unlawful conduct — including constructive dismissal, SANC deregistration, and destitution;
- (b) I have already invested substantial time and resources in building a comprehensive, fully documented case file including a 573-paragraph founding affidavit, nine regulatory filings, and a 325-page evidence bundle;
- (c) I have the necessary understanding of the legal and factual issues to prosecute this matter effectively, having researched and drafted all pleadings myself;
- (d) I have no conflicts of interest with other class members and will fairly represent their interests;
- (e) I am committed to seeing this matter through to final determination, notwithstanding the significant personal hardship I have endured.

19. I undertake to this Honourable Court that I will act in the best interests of the class as a whole and will not settle or compromise the class claims without Court approval.

PART G: SUPERIORITY OF CLASS ACTION

20. A class action is superior to other available methods for the fair and efficient adjudication of this controversy for the following reasons:

- (a) JUDICIAL EFFICIENCY: A single class action avoids the need for hundreds of individual claims raising identical legal and factual questions, conserving judicial resources and avoiding inconsistent judgments;
- (b) ACCESS TO JUSTICE: Many affected employees lack the resources, knowledge, or confidence to pursue individual claims, particularly given the retaliation risk for those still employed. A class action removes these barriers;
- (c) DETERRENCE: A class-wide remedy sends a clear institutional signal that systematic wage theft and payroll weaponisation will not be tolerated, deterring future violations;

(d) COMPREHENSIVE RELIEF: Only a class action can ensure that all affected employees receive restitution. Individual litigation would inevitably leave many victims uncompensated;

(e) SYSTEMIC ISSUES REQUIRE SYSTEMIC REMEDIES: The UIF non-remittance issue, in particular, is not amenable to individual resolution — it requires a systemic audit and correction affecting all employees.

21. There are no difficulties likely to be encountered in the management of this class action that would render it inferior to individual litigation. The claims are straightforward, the records are in the Respondent's possession, and the relief sought (restitution plus interest) is readily calculable.

PART H: NOTIFICATION AND DISSEMINATION

22. I propose that notice to potential class members be disseminated by the following methods:

- (a) Email to all current and former employees for whom the Respondent holds email addresses;
- (b) Physical posting at the Respondent's registered office and all operational sites;
- (c) Publication on the Respondent's internal employee communication systems (email, intranet);
- (d) Publication in one national newspaper with circulation in the Western Cape.

23. I respectfully submit that the costs of notice dissemination should be borne by the Respondent, as the party whose unlawful conduct gave rise to the class claims.

PART I: RULE 16A STATUTORY REQUIREMENTS

24. I am familiar with the requirements of Rule 16A of the Rules of the Labour Court and certify that:

- (a) This application is brought in good faith;
- (b) The proposed class definition is clear, objective, and ascertainable;
- (c) All requirements for class certification under Rule 16A are satisfied;
- (d) I have made reasonable efforts to identify and describe the class;
- (e) I will comply with all Court orders and procedures relating to the conduct of this class action.

PART J: VERIFICATION AND OATH

25. I verify that the facts contained in this Certificate are true and correct to the best of my knowledge and belief.

26. I understand that any false statement in this Certificate may render me liable to prosecution for perjury.

27. The annexures referred to in this Certificate and in the Founding Affidavit are true copies of original documents in my possession or within my knowledge.

WILBUR WILLIAM MATTHEE

Deponent / Applicant

I certify that the deponent has acknowledged that they know and understand the contents of this Certificate, that they have no objection to taking the prescribed oath, and that they consider the oath to be binding on their conscience.

Signed and sworn to before me at _____ on this ____ day of _____
2026,

the Deponent having acknowledged that they know and understand the contents of this Certificate.

COMMISSIONER OF OATHS

Full Name: _____

Designation: _____

Area: _____

Date: _____